

Tentative Rulings
June 2, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

16. *Espinosa v. FCA US, LLC, et al*, Case No. CIVSB2436711
Defendant FCA's Motion for Judgment on the Pleadings
6/2/26, 9:00 a.m., Dept. S-17

CONTINUE the matter to allow movant to satisfy the meet-and-confer requirements.

Prior to a motion for judgment on the pleadings, a party is required meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is the subject of the motion . . . for the purpose of determining whether an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings." (Code Civ. Proc., § 439(a) [emphasis added].) Merely sending a letter informing the party that a motion is forthcoming is insufficient.

Here, the supporting declaration indicates only that a letter was sent with no response. (See Borrero Decl., ¶¶3-4.) Thus, the Court would continue the matter to allow a supplemental declaration showing compliance. Movant will file a supplemental declaration at least ten court days before the next hearing with a courtesy copy lodged directly in the department.

17. *A.P. v. County of Santa Cruz, et al*, Case No. CIVSB2129877
Defendant County's Motion for Leave to Take the Subsequent Deposition of Plaintiff
6/2/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **DENY**.

Case Summary

This is a sexual abuse case. Plaintiff A.P. alleges that she was sexually abused while in foster care roughly twenty years ago. She asserts that Defendant County of San Bernardino is liable because of its negligence and violation of its mandatory duties, specifically as it relates to the County's duties to monitor and protect. As such, Plaintiff filed suit against Defendant County of Santa Cruz, Defendant Hand in Hand Foundation, Defendant County of San Bernardino, and Defendant A Positive Attitude Outlook, on October 7, 2021. As to County of San Bernardino, Plaintiff alleges negligence. (Compl., ¶¶143-155.) Importantly here, Plaintiff filed a First Amended Complaint (FAC) recently on December 29, 2025. The FAC alleges (1) negligence (as to County); (2) negligence (as to A Positive Attitude); and (3) negligence (as to Does 5 through 25). Plaintiff alleges that she was sexually assaulted repeatedly in foster care while in custody. She further alleges physical, psychological, and emotional injuries suffered because of that alleged sexual conduct.

Now Defendant County seeks leave to take an additional deposition of Plaintiff to address new allegations.

Statement of the Law

Generally, once a party has taken the deposition of any natural person, neither the party who gave notice of the deposition – nor any other party who was served with the deposition notice – may take an additional, subsequent deposition. (Code Civ. Proc., § 2025.610(a).)

Nevertheless, for good cause shown, the court may grant leave to take a subsequent deposition. (Code Civ. Proc., § 2025.610(b).) “Good cause” exists if the inquiry is into matters relating to new factual issues that were not known at the time of the initial deposition. (*Carlson v. Superior Court* (1961) 56 Cal.2d 431, 439.) “Good cause” requires the movant to demonstrate specific facts justifying the discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. (*Vinson v. Superior Court* (1987) 43 Ca1.3d 833, 840.)

Analysis

The County originally took Plaintiff’s deposition on December 7, 2023. (Jack Decl., ¶13; Serrano Decl., ¶13.) The County now moves for leave to take a limited subsequent deposition on three main grounds: First, it argues that the FAC establishes good cause because it expressly added a direct liability theory against the County under Government Code section 815.6 for alleged breach of mandatory duties. Second, it argues that the later production of Riverside County’s Investigation Documents warrants a follow-up examination. Third, it argues that it recently became aware of a similar case filed by Plaintiff against Santa Cruz County and, though it does not seek discovery into that separate action, the County seeks limited testimony regarding how the post-deposition evolution of Plaintiff’s claims, pleadings, and document production affect the claims asserted here.

The FAC: The County stats that a limited subsequent deposition of Plaintiff is necessary to explore the factual basis for her newly pleaded direct liability theory. It asserts that the County should not be required to defend a newly pleaded liability theory without the opportunity to ask Plaintiff what factual basis supports that theory; what has changed since her prior deposition and responses; and how the new allegations are connected to the documents and information produced after the original deposition. In opposition, Plaintiff asserts that she did not allege any *different* facts in her FAC. (Serrano Decl., ¶¶8-9, Exhs. B-C.) “Rather, she amended how those facts are framed as a matter of law. Specifically, Plaintiff’s FAC added an express Government Code § 815.6 direct liability theory, but it did not change the underlying factual allegations.” (*Id.*, ¶9.) However, as the County acknowledges, when the Court granted leave to amend, it indicated “that the original Complaint was sufficient to put the County on notice of the general nature of the direct liability theory[.]” (Mot. at p. 4:27-28.)

Moreover, Plaintiff is correct that Defendant does not demonstrate diligence in seeking a subsequent deposition when the motion for leave was filed October 16, 2025, and the FAC was

officially filed on December 29, 2025. By contrast, this motion was not filed until almost 5 months later on May 18, 2026, and, importantly, it was filed about a month away from the scheduled trial date. (See *McCoy v. Gustafson* (2009) 180 Cal.App.4th 56, 98 [Concluding there was no abuse of discretion in the trial court denying the request for a subsequent deposition when no demonstration of diligence was shown by plaintiff warranting a reopening of discovery for her expert to develop a new opinion on the eve of trial].)

The Riverside County Documents: Next, the County argues that good cause exists since relevant documents relating to Riverside County's investigation into the incident were not received until well after Plaintiff's December 2023 deposition. The County did not receive redacted versions of those documents until April 3, 2025, and it did not receive unredacted versions containing further relevant information until November 12, 2025. (Jack Decl., ¶¶3-4.)

In her opposition, Plaintiff is correct that discovery routinely involves rolling productions, third-party productions, and supplemental disclosures. Plaintiff then argues that a party cannot extend the deposition process indefinitely by pointing to each new production as a trigger for additional examination. Plaintiff further highlights that her personal knowledge, recollection, and experience are not dependent on what documents Riverside County eventually produced. Plaintiff states that she knows what she reported to whom and when, and she already testified about that knowledge. (Serrano Decl., ¶¶4-7.) Plaintiff further states the Riverside County investigation documents may corroborate or supplement the documentary record, but they do not change what Plaintiff experienced and testified about. And, Plaintiff states that Defendant can cross-examine her at trial about any relevant documents. Thus, there does not appear to be good cause relating to these documents.

The Santa Cruz County Action: Finally, the County notes that Santa Cruz County was originally a defendant in this matter and was subsequently dismissed. It also notes that the FAC alleges that Plaintiff's juvenile case was transferred from Santa Cruz County to San Bernardino County for continued foster care supervision. It states that allegation places at issue the inter-county transfer, the timing and circumstances of the transfer, information communicated during the transfer, and the County's alleged notice and conduct.

Defendant County's counsel declares that on May 7, 2026, it became aware of a similar case filed by Plaintiff against Santa Cruz County when counsel for Santa Cruz County requested a copy of the first transcript of Plaintiff's deposition in this San Bernardino County matter. (Jack Decl., ¶6.) It expresses that it is not seeking discovery into the separate action merely because it exists, nor is it attempting to conduct duplicative discovery across multiple cases. Rather, Defendant argues the Santa Cruz County action is relevant because it reflects the broader post-deposition evolution of Plaintiff's litigation strategy and allegations, including dismissal, refiling, amendment of the complaint in this action, and production of additional documents after the original deposition. It contends that a limited subsequent deposition is necessary to understand how that evolution affects the claims asserted against the County in this action. In addition, the County contends that any claims involving sexual abuse which occurred when Plaintiff was a

minor and that predate this matter would materially impact any assessment of damages in this case. The County further contends refusal would be particularly prejudicial because Plaintiff denied that she ever made sexual assault allegations against any other foster parents, caregivers, or placements throughout discovery. Specifically, Plaintiff denied such in Request for Admission No. 23.

Plaintiff, in the opposition, shares that she filed the Santa Cruz County action on July 21, 2022, nearly four years ago. (Serrano Decl., ¶14.) She states that it is public record. Plaintiff then argues that Defendant could have raised questions concerning any related actions, including the Santa Cruz County action, at her initial deposition. Plaintiff also states the issues mentioned by the County were at issue already, or could have been, explored in the original deposition. Plaintiff further states that the question of what portion of Plaintiff's harm is attributable to Defendant versus other parties is a matter for expert testimony and trial. It does not require that Plaintiff be deposed a second time about the same underlying factual events she already described under oath. As to the suggestion that it should be permitted to examine Plaintiff about the Request for Admission No. 23 issue – relating to whether Plaintiff made sexual abuse allegations against multiple foster parents – Plaintiff argues it is a transparent attempt to use the motion process to rehash discovery it already received. She represents the admission is proper and asserts that Defendant's disagreement with her response is not a basis for a second deposition.

Here, although Defendant represents the discovery is rather recent, the other action itself presents no indication that there are any new factual issues. The Complaint originally alleged that Santa Cruz County placed Plaintiff in a foster care group home where a male juvenile resident repeatedly sexually assaulted and abused her at the age of 11 years old. (See Compl., ¶¶22-27.) It also originally alleged that Plaintiff reported the abuse to her case worker for Santa Cruz County and nothing was done. (*Id.*, ¶¶28-29.) It was also originally alleged and the FAC continues to allege that Plaintiff continued as a ward of the court in foster care. Upon information and belief, Plaintiff's juvenile case was transferred from the jurisdiction of Santa Cruz County to the County on or about 2002. She was placed under the custody, control, and care of the County for continued foster care supervision and was placed in the Faraq Foster Home where her foster father allegedly sexually assaulted and abused Plaintiff. (*Id.*, ¶¶41, 45-& 46; FAC, ¶¶ 20, 24-25, & 30.) Finally, it originally alleged and continues to allege that after she reported the abuse to the County, nothing was done.

Defendant County's argument then that the discovery of the Santa Cruz County action warrants another deposition is unpersuasive. It was on notice and could have asked during Plaintiff's deposition about the factual basis for the inter-county transfer allegations; the allocation of alleged responsibility between the counties; the chronology of alleged events; the basis for any claimed notice to the County; and whether the claimed injuries and damages are attributable to conduct by others. Again, the Court does not see good cause.

18. *Stanley, et al, v. Lake Chalet Homeowners Association, et al*, Case No. CIVSB2320918
Motions to be Relieved as Attorney of Record for Plaintiffs
6/2/26, 9:00 a.m., S-17

This matter was continued from 5/22/26 to allow for either supplemental declaration or appearance for in camera review of the good cause for the requested relief

The Court would again **CONTINUE** or seek in camera discussion of the facts in support.

Here, the Lubin Pham + Caplin firm seeks to be relieved as counsel for Plaintiffs Timothy and Catherine Stanley. The declarations submitted in support only cite the law and offer in camera discussion. While the Court is cognizant of the protections related to attorney-client relationship, the Court will need *some* sort of averment establishing good cause pursuant to rule 1.16(b) of the Rules of Court. As currently worded, the submitted declarations are insufficient. Further, the Court notes a declaration submitted by the Plaintiffs asserting a *lack* of good cause. (Stanley Decl., ¶4 [“Attorney has not demonstrated sufficient grounds to justify . . .”]; also Stanley Decl., ¶7 [no meaningful discussion].) Thus, it appears that the assertion of good cause is disputed.

19. *Minguela, et al, v. American Quartz Max Corp.*, Case No. CIVSB2226990
Motion for Preliminary Approval of Class Action Settlement
6/2/26, 9:00 a.m., Dept. S-17

This matter was continued from its prior hearing date of May 11, 2026, to allow sufficient notice on the motion

Tentative Ruling

The Court would **GRANT**.

Preliminary Approval of Class Action Settlements in General

Settlement of a class action requires court approval. (Cal. Rules of Court, rule 3.769.) The moving party must demonstrate that “the settlement is fair, adequate and reasonable.” (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 126; *Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 337.) The court has “broad discretion in making this determination.” (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors the court may consider include “the strength of the plaintiffs’ case, the risk, the expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental

participant, and the reaction of the class members to the proposed settlement.” (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors “is not exhaustive and should be tailored to each case.” (*Ibid.*) The court may “engage in balancing and weighing of factors depending on the circumstances of each case.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245, overruled on other grounds in *Hernandez v. Restoration Hardware* (2018) 4 Cal.5th 260, 269.)

“Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement.” (*Wershba, supra*, 91 Cal.App.4th at p. 245, quoting *Dunk, supra*, 48 Cal.App.4th at p. 1801.)

“The court must therefore scrutinize the proposed settlement agreement to the extent necessary to “reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.” (*Ibid.*, quoting *Officers for Justice v. Civil Service Com’n* (9th Cir. 1982) 688 F.2d 615, 625.)

Nevertheless, the settlement is entitled to a “presumption of fairness . . . where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Kullar, supra*, 168 Cal.App.4th at p. 128, quoting *Dunk, supra*, 48 Cal.App.4th at p. 1802.)

Provisional Class Certification at Preliminary Approval

Although a lesser standard can be used to provisionally certify a settlement class, the court still needs to review and consider each element for certification. (*Global Minerals & Metals Corp. v. Superior Court* (2003) 113 Cal.App.4th 836, 859.) But, as settlement eliminates the need for trial, “the case management issues inherent in ascertainable class determination need not be confronted.” (*Ibid.*)

A class should be certified when “the question is one of a common or general interest, of many persons, or when parties are numerous and it is impracticable to bring them all before court.” (Code Civ. Proc., § 382.) There must be both an ascertainable class and a well-defined community of interest, which includes predominate questions of law or fact, class representatives with claims typical of the class, and class representatives who can adequately represent the class. (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

Settlement Notice

“If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any

objections to the proposed settlement.” (Rules of Court, rule 3.769(f); *Wershba v. Apple Computer, Inc.*, *supra*, 91 Cal.App.4th at p. 251.)

The manner of notice shall be by means reasonably calculated to apprise the class members of the settlement. (Rules of Court, rule 3.766(f).) The standard is “whether the notice has ‘a reasonable chance of reaching a substantial percentage of the class members.’” (*Wershba*, *supra*, 91 Cal.App.4th at p. 251.) The court must consider the interest of the class, type of relief obtained, the state of the individual class members, the costs of notifying the class members, the resources of the parties, the possible prejudice to the class members who do not receive notice, and the *res judicata* effect on the class members. (Rules of Court, rule 3.766(e).)

The Proposed Settlement

Here, Plaintiff Minguela first submitted a notice letter to the Labor and Workforce Development Agency (LWDA) in anticipation of a Private Attorneys General Act (PAGA) cause of action on November 30, 2022. On that same date, on April 20, 2023, he filed this putative wage-and-hour class action. After the exhaustion of administrative remedies, he filed a First Amended Complaint to add a cause of action for civil penalties pursuant to the Private Attorneys General Act (PAGA).

In furtherance of settlement, the Plaintiff filed a Second Amended Complaint (SAC) and added Plaintiff Moore. The operative SAC, here, now alleges class violations as to (1) minimum wages; (2) overtime wages; (3) rest breaks; (4) meal periods; (5) maintenance of accurate wage statements; (6) wage timeliness; (7) final pay; (8) reimbursements; (9) furnishing of accurate wage statements; as well as (10) violation of the unfair competition law (UCL) and (11) civil penalties pursuant to the PAGA. The UCL and PAGA claims are underpinned by alleged violations relating to the same alleged wage-and-hour violations.

The parties *initially* reached a settlement, which was later reduced to long form agreement by October of 2024. That settlement was granted preliminary approval on January 24, 2025. (See Tentative, Jan. 24, 2025.)¹ Unfortunately, that settlement could not be effectuated, and the order approving *that* settlement was stricken on December 23, 2025. (Minute Order, Dec. 23, 2025.) Eventually, after substitution of new counsel for Defendant, a *new* settlement was entered into. This motion seeks approval of that new settlement.

The class size is estimated at 154.² For purposes of settlement, the class period is from November 30, 2018, through the date of preliminary approval. The PAGA period is from

¹ The Court incorporates by this reference the prior tentative ruling’s assessment of adequate discovery and its recitation of the historical mediation that led to the initial settlement. (See Tentative, Jan. 24, 2025 at p.4 [discussing discovery, records sampling, and prior mediation with Steve Pearl on May 14, 2024].) The Court notes that the settlement terms remain largely the same as the prior iteration.

² Troublingly, although a number for PAGA workweeks is provided, no estimate is given regarding the number of aggrieved employees for PAGA purposes. (Dordi Decl., ¶170 [1,163 PAGA wage statements].) Given the differing

November 30, 2021, through the date of preliminary approval. These class and PAGA periods appear consistent with the various statutes of limitation based on the filing dates of the various suits at issue and appear appropriate.

In general, the requested settlement proposed the following terms: Defendants will pay a gross, non-reversionary settlement amount of \$150,000.00, from which will be deducted (1) \$50,000.00 for Class Counsel's attorneys' fees (1/3rd of the total); (2) costs not to exceed \$15,000.00;³ (3) Plaintiffs' enhancement fees of \$15,000.00 (\$7,500 for each Plaintiff); (4) claims administration fees not to exceed \$15,500.00; and (5) PAGA penalties of \$20,000.00 (of which 75%, or \$15,000, will go to the LWDA and 25%, or \$5,000, to the aggrieved employees).

The parties estimate this will leave a wage-and-hour only net settlement amount of a non-reversionary \$44,500.00. This amount would be split by the class of approximately 154 employees in proportionate shares determined by number of workweeks within the Settlement Class Period. Thus, the general average per employee would be \$288.96. Twenty percent (20%) of the net settlement payments would be considered wages with the remaining eighty percent (80%) considered representative of penalties and interest. (Settlement, 5.5.)

Presuming, for arguments sake, that there are exactly the same number of PAGA aggrieved employees, the general average PAGA payout would be \$32.47. Again, Final approval will be contingent on the provision of specific information regarding the PAGA aggrieved employees and the fairness of their payout.

The amount of the settlement is appropriate given the strength of Plaintiffs' case, especially in light of Plaintiffs' counsel's assessment of maximum exposure. (Dordi Decl., ¶170; also Melmed Decl., ¶176 [submitted with the prior approval motion].) However, the lower actual settlement appears fair and reasonable in light of Defendants' arguments; the likelihood of prevailing on all claims; and when calculated to include risks that the class would not be certified and the potential appeal of any judgment should Plaintiffs be successful in this venue. (Dordi Decl., ¶¶171-74; also Melmed Decl., ¶177-79.) Given the presumption of fairness, the Court would find the figure sufficient to satisfy the *Kullar* requirement. Further, adequate discovery and investigation has occurred. There is no evidence of fraud or collusion. Class counsel are well qualified to represent the class. The settlement was reached through an arms-length

statutes of limitations – unless there was absolutely no employee turnover – there would be a *different number* of employees at issue for PAGA purposes. Preliminary approval is provided here solely on the basis that the settlement provides for *pro rata* distribution of the PAGA payout determined by workweeks during the PAGA period. (Settlement, 5.4.) Final approval is contingent on provision of the exact number of PAGA aggrieved employees and workweeks at issue.

³ At final approval, Counsel will provide a breakdown of costs. Notably, any attorney bills submitted in the guise of services of an expert will require explanation and clarification as to why such bills are not properly considered attorneys' fees.

negotiation with the assistance of an experienced and well-respected mediator. The deductions from the gross settlement fund (attorneys' fees,⁴ costs,⁵ administration fee, incentive award, PAGA penalties, and taxes) appear to be reasonable and appropriate and are, therefore, *preliminarily* approved in the "not to exceed" amounts in the motion.

The Court (1) conditionally certifies the Settlement Class for purposes of this settlement; (2) appoints the Melmed Law Group P.C. as Settlement Class Counsel; (3) appoints Ivan Minguela and Randy Moore as Class Representatives; (4) approves Apex Class Action Administration as Settlement Administrator; (5) preliminarily finds the settlement fair, reasonable, and adequate; and (6) approves the form and content of the proposed Class Notice and directs the mailing of the same.

At final approval, Counsel must advise the court of any pending cases that will be affected by approval of the settlement. Counsel must provide proof that the LWDA was properly notified of the PAGA settlement and preliminary approval. Counsel must provide the *exact* number of class members and workweeks for the class settlement and the *exact* number of aggrieved employees and pay periods for the PAGA settlement.

⁴ Counsel must provide a full lodestar analysis in the motion for final approval.

⁵ Costs must be documented. The court does not award costs for LEXIS or Westlaw usage (which are considered items of overhead), faxes (also overhead), or photocopying in excess of \$0.06 per page.